

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 COMMITTEE SUBSTITUTE

4 FOR ENGROSSED

HOUSE BILL 3940

By: West (Josh) of the House

5 and

6 Hines of the Senate

7
8 COMMITTEE SUBSTITUTE

9 An Act relating to the Oklahoma National Guard;
10 prohibiting certain compensation except in certain
situations; requiring certain compensation to be
11 equivalent to certain member; requiring compensation
to be provided by the Oklahoma National Guard
Supplemental Retention Pay Revolving Fund; amending
12 44 O.S. 2021, Sections 26, as amended by Section 4,
Chapter 344, O.S.L. 2025, and 27 (44 O.S. Supp. 2025,
13 Section 26), which relate to the Military Department
of the State of Oklahoma; allowing certain bequests
14 to be defined by the Adjutant General in certain
situations; removing requirement for Adjutant General
15 to be paid certain amount; amending 44 O.S. 2021,
Sections 235 and 235.1, which relate to the Oklahoma
16 National Guard Museum; removing certain requirement
for certain location of Military Department of the
17 State of Oklahoma; removing certain allowance of
leasing of certain association; allowing Executive
18 Director to establish gift shop; allowing proceeds
from gift shop to be deposited into the Oklahoma
19 National Guard Museum Revolving Fund; allowing the
Oklahoma National Guard Museum Revolving Fund to be
20 for the Military Department of the State of Oklahoma;
allowing certain proceeds to be deposited into fund;
21 amending 44 O.S. 2021, Section 243, as amended by
Section 6, Chapter 344, O.S.L. 2025 (44 O.S. Supp.
22 2025, Section 243), which relates to rules and
regulations; removing certain requirement that
23 certain members be considered part of state military
forces; removing certain requirement that certain
24 persons be subject to Oklahoma Uniform Code of

1 Military Justice; removing certain requirement that
2 certain employee receive certain compensations;
3 amending Sections 18 and 19, Chapter 344, O.S.L. 2025
4 (44 O.S. Supp. 2025, Sections 271 and 272), which
5 relate to operative date and Oklahoma National Guard
6 Supplemental Retirement Pay Revolving Fund; requiring
7 certain persons to have served certain number of
8 years in the Oklahoma National Guard to receive
9 certain benefits; describing certain persons as
10 qualified members; exempting certain persons from
11 certain provisions if persons are receiving certain
12 funds; requiring certain amount to be determined
13 based on total points accrued; renaming certain fund;
14 amending 44 O.S. 2021, Section 815, as amended by
15 Section 7, Chapter 344, O.S.L. 2025 (44 O.S. Supp.
16 2025, Section 815), which relates to voting and
17 rulings; removing certain requirement that certain
18 reduction in pay be done by person with certain
19 authority of such lower pay grade; requiring certain
20 member to provide certain response within certain
21 time period if on active duty; amending Section 1,
22 Chapter 390, O.S.L. 2025 (70 O.S. Supp. 2025, Section
23 14-140), which relates to the Oklahoma National Guard
24 CareerTech Assistance Act; renaming certain act;
removing certain eligibility requirements; updating
statutory references; updating statutory language;
allowing certain qualifying member to transfer
certain benefits; allowing the Adjutant General to
promulgate rules; requiring certain criteria to be
met to transfer certain benefits; allowing spouse of
certain qualifying member to use certain benefits in
certain situations; allowing certain dependent child
of certain qualifying member to use certain benefits
in certain situations; providing for recodification;
providing for codification; and providing an
effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 21.2 of Title 44, unless there
3 is created a duplication in numbering, reads as follows:

4 As applicable to the procedure for the enlistment, organization,
5 pay, maintenance, equipment, and disciplining of such forces, such
6 compensation shall be in conformity with the law and the rules and
7 regulations governing and pertaining to the Oklahoma National Guard;
8 provided, that the officers and enlisted personnel in the Oklahoma
9 State Guard shall not receive any compensation or monetary
10 allowances from the state except when activated for state active
11 duty, as defined in Section 801 of Title 44 of the Oklahoma
12 Statutes, by order of the Governor. Any full-time state employee
13 who serves in a military capacity shall receive compensation
14 equivalent to the compensation, benefits, entitlements, or other
15 compensation received by a full-time active-duty service member at
16 the same rank and time in grade for the same duration. Compensation
17 received pursuant to this section shall be funded by the Oklahoma
18 National Guard Supplemental Retention Pay Revolving Fund established
19 pursuant to Section 272 of Title 44 of the Oklahoma Statutes or any
20 other funds appropriated.

21 SECTION 2. AMENDATORY 44 O.S. 2021, Section 26, as
22 amended by Section 4, Chapter 344, O.S.L. 2025 (44 O.S. Supp. 2025,
23 Section 26), is amended to read as follows:

1 Section 26. A. The Adjutant General shall be in control of the
2 Military Department of the State of Oklahoma, subordinate only to
3 the Governor. Within the limitations and under the provisions of
4 law, he or she shall supervise and direct the Oklahoma National
5 Guard within the service of the state and when under state control
6 in all of its organization, training and other activities; shall
7 receive and give effect to the orders of the Governor; and shall
8 perform such other military and defense duties, not otherwise
9 assigned by law, as the Governor may prescribe. The Adjutant
10 General shall have the authority to arm members of the state
11 military forces on military installations and other places under the
12 control of the Military Department of the State of Oklahoma with
13 weaponry as the Adjutant General deems necessary to adequately
14 provide for the security of the facilities and their occupants.

15 B. The Adjutant General, when absent from the state, may
16 temporarily delegate any authority vested under this title and any
17 such duties as an agency appointing authority to an Assistant
18 Adjutant General, other state officer or employee within the
19 Military Department of the State of Oklahoma. Such temporary
20 delegations of authority pursuant to this subsection shall be
21 accomplished in writing. The Adjutant General may also promulgate
22 regulations providing for the delegation of any such authority.

23 C. The Adjutant General shall develop, publish and maintain an
24 organizational chart depicting the chain of command between the

1 Adjutant General and the major commands of the Oklahoma National
2 Guard. Besides the major commands defined in Section 801 of this
3 title ~~(Article 1)~~, the Adjutant General, in his or her discretion,
4 may designate other military units within the Oklahoma National
5 Guard as major commands.

6 D. The organizational chart required in subsection C of this
7 section shall be updated no less than annually and shall include all
8 enlisted and officer billets assigned to joint ~~forces~~ force
9 headquarters and shall depict all existing command relationships
10 established by the Adjutant General within joint ~~forces~~ force
11 headquarters. The organizational chart required herein shall not be
12 considered a military publication within the meaning of Section 801
13 of this title ~~(Article 1)~~.

14 E. In accordance with all relevant requirements of the United
15 States Army, the United States Air Force or the National Guard
16 Bureau, the Adjutant General shall develop, publish and maintain an
17 enlisted and officer rating scheme for all enlisted and officer
18 billets assigned to joint ~~forces~~ force headquarters. The rating
19 scheme required herein shall not be considered a military
20 publication within the meaning of Section 801 of this title ~~(Article~~
21 ~~1)~~.

22 F. Pursuant to the rules established by the Adjutant General,
23 the Military Department of the State of Oklahoma is authorized to
24

1 expend appropriated and nonappropriated funds to enhance recruiting
2 and retention efforts for the Oklahoma National Guard.

3 G. The Adjutant General may establish rules allowing the
4 Military Department of the State of Oklahoma to accept donations and
5 bequests to create a program for the benefit of members of the
6 Oklahoma National Guard. The purpose of any bequests may be
7 redefined by the Adjutant General in the event the original purpose
8 is covered by some other section of law or source of funding.

9 H. The Adjutant General shall serve as the chief of all fire
10 protection units operating under the ~~Oklahoma~~ Military Department of
11 the State of Oklahoma and shall supervise and administer the fire
12 protection units in accordance with the rules and procedures
13 prescribed by the Military Department of the State of Oklahoma.

14 I. The Adjutant General shall serve as the ~~chief~~ commissioner
15 of all police units and officers appointed under the ~~Oklahoma~~
16 Military Department of the State of Oklahoma. The Adjutant General
17 may appoint police officers in accordance with Section 230 of this
18 title.

19 SECTION 3. AMENDATORY 44 O.S. 2021, Section 27, is
20 amended to read as follows:

21 Section 27. The ~~Adjutant General and~~ Assistant Adjutants
22 General shall be paid a sum equivalent to the pay of ~~his/her~~ his or
23 her federally recognized rank, exclusive of allowances. Other
24 officers and enlisted ~~men~~ persons and employees of the Department

1 shall be paid in amounts fixed by the Adjutant General and within
2 amounts appropriated for ~~that~~ such purpose.

3 SECTION 4. AMENDATORY 44 O.S. 2021, Section 235, is
4 amended to read as follows:

5 Section 235. There is hereby created the Oklahoma National
6 Guard Museum, to be under the supervision of the Adjutant General.
7 The Adjutant General may appoint an Executive Director to oversee
8 the daily operations and maintenance of the museum and perform other
9 duties as requested by the Adjutant General. Appropriate state
10 agencies are directed to make available, for display of items of
11 historical significance and necessary space for administration, ~~the~~
12 ~~buildings presently occupied by the Oklahoma Military Department,~~
13 ~~located in the vicinity of 36th Street and North Eastern in Oklahoma~~
14 ~~City, Oklahoma. The building herein referred to shall be made~~
15 ~~available by the Adjutant General as soon as same is no longer~~
16 ~~needed by and is vacated by the Oklahoma Military Department~~ the
17 Oklahoma National Guard Museum building located at 3301 Northeast
18 Grand Boulevard in Oklahoma City. The Executive Director, subject
19 to the approval of the Adjutant General, ~~may lease to the 45th~~
20 ~~Infantry Division Association, for periods not exceeding one (1)~~
21 ~~year and with provisions for renewal from year to year, an area to~~
22 ~~be used as a gift shop, if the lease does not interfere with its use~~
23 ~~by the Oklahoma National Guard Museum~~ establish a gift shop in a
24 designated area of the Oklahoma National Guard Museum. The proceeds

1 of the sales from the gift shop shall ~~remain with the 45th Infantry~~
2 ~~Division Association for operating purposes~~ be deposited in the
3 Oklahoma National Guard Museum Revolving Fund established pursuant
4 to Section 235.1 of this title.

5 SECTION 5. AMENDATORY 44 O.S. 2021, Section 235.1, is
6 amended to read as follows:

7 Section 235.1. There is hereby created in the State Treasury a
8 ~~special revolving fund for the Military Department of the State of~~
9 Oklahoma to be known as the "Oklahoma National Guard Museum
10 Revolving Fund", which fund shall consist of donations received for
11 operation and maintenance of the museum ~~and,~~ proceeds from the
12 rental of the museum event center, monies received from the sale of
13 Armed Forces Veterans Motorcycle License Plates and Global War on
14 Terrorism License Plates pursuant to Section 1135.5 of Title 47 of
15 the Oklahoma Statutes, and proceeds from sales in the Oklahoma
16 National Guard Museum gift shop. The fund shall be a continuing
17 fund, not subject to fiscal year limitations, and shall be under the
18 administrative direction of the ~~Oklahoma~~ Military Department of the
19 State of Oklahoma. Expenditures from the fund created by this
20 section shall be used exclusively for expenses of operation and
21 maintenance of the Oklahoma National Guard Museum and shall be made
22 pursuant to the laws of this state and without legislative
23 appropriation. Warrants for expenditures from the fund shall be
24 drawn by the State Treasurer, based on claims signed by an

1 authorized employee of the department and approved for payment by
2 the Director of the Office of Management and Enterprise Services.

3 SECTION 6. AMENDATORY 44 O.S. 2021, Section 243, as
4 amended by Section 6, Chapter 344, O.S.L. 2025 (44 O.S. Supp. 2025,
5 Section 243), is amended to read as follows:

6 Section 243. A. The Governor is hereby authorized to prescribe
7 rules and regulations governing the enlistment, organization,
8 administration, equipment, discipline and discharge of the personnel
9 of such military forces; to requisition from the Secretary of
10 Defense such arms and equipment as may be in the possession of and
11 can be spared by the United States Department of Defense and to
12 extend thereto the facilities of state armories, Armed Forces
13 Reserve Centers, readiness centers, logistics, aviation, and
14 training facilities, warehouses and their equipment and such other
15 state premises and property as may be available for the purpose of
16 drill and instruction.

17 ~~B. Members of the Oklahoma National Guard shall be considered~~
18 ~~part of state military forces as defined in Section 801 of this~~
19 ~~title and shall be subject to the Oklahoma Uniform Code of Military~~
20 ~~Justice.~~

21 ~~C. Any full-time state employee that serves in a military~~
22 ~~capacity shall receive compensation equaling the compensation,~~
23 ~~benefits, entitlements, or other compensation received by a full-~~
24 ~~time active-duty service member at the same rank and time in grade.~~

1 ~~D.~~ When prescribing the rules and regulations governing
2 enlistment, organization, administration, equipment, discipline and
3 discharge of the personnel of the Oklahoma ~~National~~ State Guard, the
4 Governor shall issue such rules and regulations in the form of an
5 executive order or in a series of such orders. An executive order
6 or a series of such orders prescribing the rules and regulations
7 governing enlistment, organization, administration, equipment,
8 discipline and discharge of the personnel of the Oklahoma ~~National~~
9 State Guard shall also be published by the Adjutant General as a
10 military publication.

11 SECTION 7. AMENDATORY Section 18, Chapter 344, O.S.L.
12 2025 (44 O.S. Supp. 2025, Section 271), is amended to read as
13 follows:

14 Section 271. A. The provisions of this section shall not be
15 operative and no payments shall be made from the Oklahoma National
16 Guard Supplemental Retirement Pay Revolving Fund created in Section
17 ~~19~~ 272 of this ~~act~~ title until November 1, 2027.

18 B. The provisions of this section shall only be applicable to a
19 member of the Oklahoma National Guard who has accrued enough service
20 credit ~~prior to the effective date of this act~~ in order to retire
21 from the system maintained by the Defense Finance and Accounting
22 Service, or its successor in interest, for the benefit of members of
23 state ~~National Guards~~ national guards, but who has not attained the
24 required age prior to ~~the effective date of this act~~ November 1,

1 2025, in order to be paid the full amount of such benefit. No
2 member of the Oklahoma National Guard shall be eligible to receive a
3 payment pursuant to the provisions of this section unless the member
4 has completed twenty-five (25) years of military service, which
5 shall include at least five (5) years in the Oklahoma National
6 Guard, and retires as a member of the Oklahoma National Guard. Such
7 member who qualifies for such benefits pursuant to this section
8 shall be deemed a qualifying member.

9 C. The provisions of this section shall not be applicable to
10 any person who ~~retires with an active duty military pension~~ is
11 receiving funds pursuant to 10 U.S.C., Section 12732.

12 D. The amount of the payment shall be determined as follows:

13 1. Determine the amount of retirement the member would receive
14 if the member had reached the age to accrue federal retirement
15 benefits based upon total points accrued;

16 2. If the members of the active duty military retirement system
17 were eligible for a cost-of-living adjustment for the year for which
18 the computation of the payment amount authorized by this section is
19 to be made, the cost-of-living adjustment amount in an annualized
20 form shall be added to the result of the computation in paragraph 1
21 of this subsection each year; and

22 3. The resulting amount shall be paid to the Oklahoma National
23 Guard member in twelve ~~(12)~~ equal monthly amounts with allowance as
24 required for rounding.

1 E. Any benefit payable to an eligible member of the Oklahoma
2 National Guard shall only be payable during the member's lifetime,
3 and no benefit authorized pursuant to the provisions of this section
4 shall be payable to a beneficiary other than amounts paid to a
5 member prior to the member's death which are payable to another
6 person pursuant to the provisions of a joint tenancy bank account
7 with a right of survivorship naming a person or persons as
8 beneficiary, a bank account with a transfer on death or payable on
9 death feature, an express trust, including, but not limited to, a
10 trust created by the payee member during his or her lifetime, a will
11 or the statute of intestate succession for distribution of the
12 assets of a person who does not otherwise provide for the
13 disposition of his or her assets after death.

14 F. The payment otherwise authorized pursuant to the provisions
15 of this ~~act~~ section may only be made to a person who has become
16 eligible to receive retirement benefits from the retirement system
17 under the supervision of the Defense Finance and Accounting Service,
18 or its successor in interest, as of the date the first payment
19 pursuant to this ~~act~~ section is authorized.

20 G. The payments authorized by this section shall be paid to the
21 eligible member until the member begins to receive federal
22 retirement benefits from the Defense Finance and Accounting Service,
23 or its successor in interest, but shall not be paid for any period
24 of time after such time period.

1 H. In the event the funds required for full payment to all
2 eligible members pursuant to the provisions of this section are not
3 sufficient, the payments to the eligible members shall be prorated
4 by dividing the total number of eligible members by the total amount
5 of available funds. The resulting quotient shall be multiplied by
6 the payment amount otherwise due to the eligible member and the
7 result of that computation shall be the reduced dollar amount paid
8 to each member for the applicable period. For any period of time
9 during which payments are prorated pursuant to this subsection, the
10 next increment of available funds shall be used to make payments to
11 the eligible members whose payment amounts were prorated to
12 compensate for the reduction made in the prior payment period.

13 SECTION 8. AMENDATORY Section 19, Chapter 344, O.S.L.
14 2025 (44 O.S. Supp. 2025, Section 272), is amended to read as
15 follows:

16 Section 272. There is hereby created in the State Treasury a
17 revolving fund for the ~~Oklahoma~~ Military Department of the State of
18 Oklahoma to be designated the "Oklahoma National Guard Supplemental
19 ~~Retirement~~ Retention Pay Revolving Fund". The fund shall be a
20 continuing fund, not subject to fiscal year limitations, and shall
21 consist of all monies received by the ~~Oklahoma~~ Military Department
22 of the State of Oklahoma from funds provided by law. All monies
23 accruing to the credit of ~~said~~ the fund are hereby appropriated and
24 may be budgeted and expended by the ~~Oklahoma~~ Military Department of

1 the State of Oklahoma for the purpose of implementing the provisions
2 of Section ~~18~~ 271 of this ~~act~~ title. Expenditures from ~~said~~ the
3 fund shall be made upon warrants issued by the State Treasurer
4 against claims filed as prescribed by law with the Director of the
5 Office of Management and Enterprise Services for approval and
6 payment.

7 SECTION 9. AMENDATORY 44 O.S. 2021, Section 815, as
8 amended by Section 7, Chapter 344, O.S.L. 2025 (44 O.S. Supp. 2025,
9 Section 815), is amended to read as follows:

10 Section 815. ARTICLE 15. Commanding officer's nonjudicial
11 punishment.

12 A. Except as provided in subsection B of this section, any
13 commanding officer may impose disciplinary punishments for minor
14 offenses arising under the punitive articles of the Oklahoma Uniform
15 Code of Military Justice without the intervention of a court-
16 martial.

17 B. Any commanding officer may limit or withhold the exercise of
18 nonjudicial punishment authority by subordinate commanders,
19 including limiting authority over certain categories of military
20 personnel or offenses. Likewise, individual cases may be reserved
21 by a superior commander. A superior authority may limit or withhold
22 any power that a subordinate might otherwise exercise under this
23 section.

1 C. Except as provided in subsection L of this section, the
2 Governor or Adjutant General may delegate the powers established
3 under this section to a commanding officer who is a member of the
4 state military forces and is also a member of the same force
5 component as the accused.

6 D. Except as provided in subsection S of this section, any
7 commanding officer may impose upon enlisted members of the officer's
8 command:

9 1. An admonition;

10 2. A reprimand;

11 3. The withholding of privileges for not more than six (6)
12 months, which need not be consecutive;

13 4. The forfeiture ~~of pay~~ of not more than seven (7) days' pay;

14 5. A fine ~~of~~ not more than seven (7) days' pay;

15 6. A reduction to the next inferior pay grade, ~~if the grade~~
16 ~~from which demoted is within the promotion authority of the officer~~
17 ~~imposing the reduction or any officer subordinate to the one who~~
18 ~~imposes the reduction;~~

19 7. Extra duties, including fatigue or other duties, for not
20 more than fourteen (14) days, which need not be consecutive; and

21 8. Restriction to certain specified limits, with or without
22 suspension from duty, for not more than fourteen (14) days, which
23 need not be consecutive.
24

1 E. Except as provided in subsection S of this section, any
2 commanding officer of the grade of major or above may impose upon
3 enlisted members of the officer's command:

4 1. An admonition;

5 2. A reprimand;

6 3. The withholding of privileges for not more than six (6)
7 months, which need not be consecutive;

8 4. The forfeiture of not more than one-half (1/2) of one (1)
9 month's pay per month for two (2) months;

10 5. A fine of not more than one (1) month's pay;

11 6. A reduction to the lowest or any intermediate pay grade, ~~if~~
12 ~~the grade from which demoted is within the promotion authority of~~
13 ~~the commanding officer imposing the reduction or any officer~~
14 ~~subordinate to the one who imposes the reduction~~, but an enlisted
15 member in a pay grade above E-4 shall not be reduced more than two
16 pay grades;

17 7. Extra duties, including fatigue or other duties, for not
18 more than forty-five (45) days, which need not be consecutive; and

19 8. Restriction to certain specified limits, with or without
20 suspension from duty, for not more than sixty (60) days, which need
21 not be consecutive.

22 F. The Governor, the Adjutant General, or an officer exercising
23 general or special court-martial convening authority may impose:

24 1. Upon officers of the officer's command:

1 a. any punishment authorized in subsection E of this
2 section, except for the punishments provided in
3 paragraphs 6 and 7 of subsection E of this section,
4 and

5 b. arrest in quarters for not more than thirty (30) days,
6 which need not be consecutive; and

7 2. Upon enlisted members of the officer's command, any
8 punishment authorized in subsection E of this section.

9 Admonitions or reprimands given as nonjudicial punishment to
10 commissioned officers and warrant officers shall be administered in
11 writing. In all other cases, unless otherwise prescribed by
12 regulations promulgated by the Adjutant General, such punishments
13 may be administered either orally or in writing.

14 G. Whenever any punishments are combined to run consecutively,
15 the total length of the combined punishment shall not exceed the
16 authorized duration of the longest punishment included in the
17 combination, and there shall be an apportionment of punishments so
18 that no single punishment in the combination exceeds its authorized
19 length under this section.

20 H. Once the commanding officer has determined that nonjudicial
21 punishment is appropriate, the commanding officer shall provide
22 reasonable notice to the member of his or her intent to impose
23 nonjudicial punishment. At the time the commanding officer provides
24 notification as required in this subsection, the member shall be

1 entitled to examine all statements and other evidence that the
2 commander has examined and intends to rely upon as the basis for
3 punishment. The member shall be provided a copy of the documentary
4 evidence unless it is privileged, classified, or otherwise
5 restricted by law, regulation, or instruction. At the time the
6 commanding officer provides notification as required in this
7 subsection, the commanding officer shall also inform the member as
8 to the quantum of punishment potentially to be imposed. While a
9 member undergoing nonjudicial punishment is not entitled to
10 representation by a duly appointed defense counsel, the member may
11 seek legal advice from any judge advocate available for this
12 purpose. Upon notification by the officer of his or her intent to
13 impose judicial punishment, the member shall provide a response
14 within forty-five (45) calendar days, or three (3) duty days if on
15 active duty.

16 I. The right to demand trial by court-martial in lieu of
17 nonjudicial punishment shall arise only when arrest in quarters or
18 restriction will be considered as punishments. If the commanding
19 officer determines that arrest in quarters or restriction will be
20 considered as punishments, prior to the offer of nonjudicial
21 punishment the member shall be notified in writing of the right to
22 demand trial by court-martial. Should the commanding officer
23 determine that the punishment options will not include arrest in
24 quarters or restriction, the member shall be notified that there is

1 no right to trial by court-martial in lieu of nonjudicial
2 punishment. Upon notification by the commanding officer of his or
3 her intent to impose nonjudicial punishment that includes arrest in
4 quarters or restriction, the member shall be afforded a reasonable
5 amount of time to confer with legal counsel and to prepare a
6 response.

7 J. The commanding officer who imposes the punishment, or his or
8 her successor in command, may at any time suspend, set aside,
9 mitigate or remit any part or amount of the punishment and restore
10 all rights, privileges and property affected. The commanding
11 officer may also mitigate:

- 12 1. Reduction in grade to forfeiture of pay;
- 13 2. Arrest in quarters to restriction; or
- 14 3. Extra duties to restriction.

15 The mitigated punishment shall not be for a greater period than
16 the punishment mitigated. When mitigating reduction in grade to
17 forfeiture of pay, the amount of the forfeiture shall not be greater
18 than the amount that could have been imposed initially under this
19 ~~article~~ section by the officer who imposed the punishment mitigated.

20 K. A person punished under this section who considers the
21 punishment unjust or disproportionate to the offense may, through
22 his or her chain of command, appeal to a senior officer designated
23 by the Adjutant General to adjudicate appeals arising from
24 nonjudicial punishment. A senior officer so designated by the

1 Adjutant General shall be a member of the same component of the
2 state military forces as the accused. An appeal made pursuant to
3 this subsection shall be lodged within fifteen (15) calendar days
4 after the punishment is announced to the member. The commanding
5 officer exercising appellate authority may, at his or her
6 discretion, extend the deadline for an appeal. The appeal shall be
7 promptly forwarded and decided, and the member shall not be punished
8 until the appeal is decided. The senior officer designated by the
9 Adjutant General as exercising appellate authority may exercise the
10 same powers with respect to the punishment imposed as may be
11 exercised under subsection I of this section by the officer who
12 imposed the punishment. Before acting on an appeal ~~from~~ for a
13 punishment, the senior officer exercising appellate authority shall
14 refer the case to a judge advocate for consideration and advice.
15 When a senior officer is designated by the Adjutant General to
16 adjudicate appeals arising from nonjudicial punishment, such
17 designation shall be accomplished in writing and shall be considered
18 a military publication, as defined in Section 801 of this title
19 ~~(Article 1)~~.

20 L. Except for nonjudicial punishment imposed by the Governor or
21 the Adjutant General, the final appellate authority for nonjudicial
22 punishment imposed within state military forces is the Adjutant
23 General. A person punished under this section whose appeal was
24 previously denied by a senior officer designated to adjudicate

1 appeals may, through his or her chain of command, lodge an
2 additional appeal with the Adjutant General within five (5) days
3 after the appeal is denied. In the event the officer imposing
4 nonjudicial punishment is a senior officer who is also designated to
5 adjudicate appeals arising from nonjudicial punishment, an appeal
6 thereof shall be addressed directly to the Adjutant General. In the
7 event the officer imposing nonjudicial punishment is the Adjutant
8 General, an appeal thereof shall be addressed directly to the
9 Governor. An appeal offered pursuant to this subsection shall be
10 made only in writing. Neither the Governor nor the Adjutant General
11 shall delegate his or her duties as an appellate authority under
12 this subsection.

13 M. Whenever nonjudicial punishment is imposed under this
14 section:

15 1. After adjudication and while the punishment is being carried
16 out or while the adjudged punishment is pending before the appellate
17 authority, the commander or officer in charge who imposed the
18 nonjudicial punishment, upon the request of the ~~member~~ officer, may:

19 a. excuse the ~~member~~ officer from attendance at scheduled
20 unit training assemblies, or

21 b. arrange for the ~~member~~ officer to drill on alternate
22 dates and in alternate locations; or

23 2. If necessary to maintain good order and discipline within
24 the unit, the commanding officer who imposed the nonjudicial

1 punishment may order the member to drill on alternate dates and in
2 alternate locations. The order shall be reduced to writing and
3 shall become part of the record of nonjudicial punishment.

4 N. The imposition and enforcement of disciplinary punishment
5 under this section for any act or omission shall not be a bar to
6 trial by court-martial or a civilian court of competent jurisdiction
7 for a crime or offense arising out of the same act or omission; but
8 the fact that a disciplinary punishment has been enforced may be
9 demonstrated by the member upon trial and, when so demonstrated, it
10 shall be considered in determining the measure of punishment to be
11 adjudged in the event of a finding or verdict of guilty.

12 Nonjudicial punishment shall not be imposed for an offense
13 previously tried by a civilian court unless so authorized by
14 regulations promulgated by the Adjutant General.

15 O. When nonjudicial punishment has been imposed for an offense,
16 punishment shall not again be imposed for the same offense under
17 this section. Once nonjudicial punishment has been imposed, it may
18 not be increased, upon appeal or otherwise. When a commanding
19 officer determines that nonjudicial punishment is appropriate for a
20 particular member, all known offenses determined to be appropriate
21 for disposition by nonjudicial punishment and ready to be considered
22 at that time, including all offenses arising from a single incident
23 or course of conduct, shall be considered together and shall not be
24 made the basis for multiple punishments. This subsection shall in

1 no way restrict the right of a commanding officer to prefer court-
2 martial charges for an offense previously punished under the
3 provisions of this section.

4 P. In accordance with subsection B of Section 843 of this title
5 ~~(Article 43, subsection B)~~, a person accused of an offense is not
6 liable to be punished under this section if the offense was
7 committed more than two (2) years before the imposition of
8 punishment. Periods in which the member is absent without authority
9 shall be excluded in computing the period of limitation prescribed
10 in this section.

11 Q. Whenever a punishment of forfeiture of pay is imposed under
12 this section, the forfeiture shall not apply to pay accruing before
13 the date that punishment is imposed, but only pay accruing on or
14 after the date that punishment is imposed.

15 R. The Adjutant General may promulgate regulations prescribing
16 the type and form of records to be kept of proceedings conducted
17 pursuant to this section. The Adjutant General may promulgate any
18 other regulations necessary to carry out the provisions of this
19 section.

20 S. For purposes of this section, no member of the Oklahoma
21 National Guard of the rank of E-8 or E-9 shall be reduced in rank
22 pursuant to this section except when the reduction results from
23 nonjudicial punishment imposed by an officer of the Oklahoma
24 National Guard of the rank of Brigadier General or by the Adjutant

1 General. When imposing nonjudicial punishment on enlisted persons
2 of the rank of E-7 or below, a ~~commander or~~ commanding officer ~~in~~
3 ~~charge who possesses the rank of colonel~~ may consider reduction in
4 rank as a possible punishment.

5 SECTION 10. AMENDATORY Section 1, Chapter 390, O.S.L.
6 2025 (70 O.S. Supp. 2025, Section 14-140), is amended to read as
7 follows:

8 Section 14-140. A. ~~This act~~ Sections 14-140 through 14-141 of
9 this title shall be known and may be cited as the ~~"Oklahoma National~~
10 ~~Guard CareerTech Assistance~~ "Christopher A. Rau Act".

11 B. As used in ~~this act~~ the Christopher A. Rau Act:

12 1. "Technology center school" means a technology center school
13 under the governance of the State Board of Career and Technology
14 Education;

15 2. "Eligible Guard member" means a current member of the
16 Oklahoma National Guard in good standing who has a high school
17 diploma or who has completed General Educational Development (GED)
18 requirements and who has enrolled in a technology center school; and

19 3. "Program" means the Oklahoma National Guard CareerTech
20 Assistance Program established pursuant to the provisions of this
21 section.

22 C. 1. There is hereby created the Oklahoma National Guard
23 CareerTech Assistance Program to provide assistance to eligible
24 Guard members who enroll in a technology center school. Subject to

1 the availability of funds, the amount of assistance shall be
2 equivalent to the amount of tuition for a career and technology
3 program in which the eligible Guard member is enrolled leading to
4 certification or licensure, not to exceed a maximum of three (3)
5 years.

6 2. Assistance provided pursuant to this section shall be
7 granted without any limitation other than the amount of funds
8 available for the program and the number of eligible Guard members
9 who apply, subject to any cap established by the Military Department
10 of the State of Oklahoma.

11 3. Assistance allowed by this section shall not be allowed for
12 courses taken in excess of the requirements for completion of a
13 technology center school program leading to certification or
14 licensure.

15 D. Assistance provided pursuant to this section shall be
16 allocated to the technology center school from the Oklahoma National
17 Guard CareerTech Assistance Revolving Fund created pursuant to
18 Section ~~2~~ 14-141 of this ~~act~~ title.

19 ~~E. To be eligible to apply for the program, an eligible Guard~~
20 ~~member shall:~~

21 ~~1. Have at least one (1) year remaining on his or her~~
22 ~~enlistment contract at the beginning of any semester for which the~~
23 ~~member applies for assistance pursuant to this section;~~
24

1 ~~2. Agree in writing to complete his or her current service~~
2 ~~obligation in the Oklahoma National Guard; and~~

3 ~~3. Agree in writing to serve actively in good standing with the~~
4 ~~Oklahoma National Guard for not less than twenty four (24) months~~
5 ~~after completion of the last semester for which the member receives~~
6 ~~assistance pursuant to this section.~~

7 F. To retain eligibility for the program, an eligible Guard
8 member shall:

9 1. Maintain good academic standing and satisfactory progress
10 according to the standards of the technology center school in which
11 the member is enrolled;

12 2. Maintain the requirements for retention and completion as
13 established by the technology center school in which the member is
14 enrolled;

15 3. Maintain a minimum grade point of average of 2.0 on a 4.0
16 scale;

17 4. Maintain satisfactory participation in the Oklahoma National
18 Guard; and

19 5. Possess a Military Occupational Specialty (MOS) or Air Force
20 Specialty Code (AFSC) after his or her first semester.

21 ~~G.~~ F. An eligible Guard member seeking assistance pursuant to
22 the provisions of this section shall submit an application on a form
23 prescribed by the Military Department of the State of Oklahoma to
24 the Educational Service Office of the Military Department prior to

1 the semester for which assistance is sought. The eligible Guard
2 member's ~~Commander~~ commander or his or her designee shall confirm a
3 member's standing and eligibility to the technology center school in
4 which the student is enrolled. The Military Department may
5 establish a cap on the number of eligible Guard members allowed to
6 participate per semester per technology center school program.

7 ~~H.~~ G. The eligible Guard member's ~~Commander~~ commander may deny
8 an application submitted by an eligible Guard member for continued
9 program assistance if he or she fails to comply with the provisions
10 of paragraph 1, 2, 3, 4, or 5 of subsection ~~F~~ E of this section.

11 ~~I. An eligible Guard member seeking assistance pursuant to this~~
12 ~~section who is eligible for federal education benefits for~~
13 ~~vocational training shall exhaust all such federal benefits, when~~
14 ~~available, first.~~

15 ~~J.~~ H. An eligible Guard member who has received program
16 assistance pursuant to the provisions of this section and who fails
17 to comply with the provisions of paragraph 4 of subsection ~~F~~ E of
18 this section shall be required to repay an amount to be calculated
19 as follows:

20 1. Determine the total amount of assistance provided pursuant
21 to the provisions of this section;

22 2. Divide the amount determined in paragraph 1 of this
23 subsection by twenty-four (24); and
24

1 3. Multiply the amount determined in paragraph 2 of this
2 subsection by the number of months the member did not fulfill the
3 requirements of paragraph 4 of subsection ~~F~~ E of this section.
4 Repayments shall be deposited into the Oklahoma National Guard
5 CareerTech Assistance Revolving Fund created pursuant to Section ~~2~~
6 14-141 of this ~~act~~ title.

7 ~~K.~~ I. An eligible Guard member who has received program
8 assistance pursuant to the provisions of this section and who fails
9 to comply with the provisions of paragraph 4 of subsection ~~F~~ E of
10 this section due to hardship circumstances may request a waiver from
11 repayment. A waiver request shall be submitted in writing to the
12 Adjutant General.

13 ~~L.~~ J. By July 1 annually, the State Board of Career and
14 Technology Education shall notify the Adjutant General of the amount
15 of funding available in the Oklahoma National Guard CareerTech
16 Assistance Revolving Fund created pursuant to Section ~~2~~ 14-141 of
17 this ~~act~~ title.

18 ~~M.~~ K. The State Board of Career and Technology Education shall
19 promulgate rules to implement the provisions of ~~this act~~ the
20 Christopher A. Rau Act including deadlines for submission of
21 applications required by subsection ~~G~~ F of this section. The
22 Military Department of the State of Oklahoma shall promulgate
23 regulations pertaining to the application process and the
24 determination of eligibility for the program. The Board and the

1 Department shall coordinate the promulgation of rules and
2 regulations, respectively. ~~The Adjutant General may promulgate~~
3 ~~regulations to implement the provisions of this act~~

4 L. An eligible Guard member seeking assistance pursuant to this
5 section who is eligible for federal education benefits for
6 vocational training or higher education shall first exhaust all such
7 federal benefits, subject to availability.

8 SECTION 11. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 14-140.1 of Title 70, unless
10 there is created a duplication in numbering, reads as follows:

11 A. Subject to the provisions of this section, the Adjutant
12 General may permit a qualifying member, as described in Section 271
13 of Title 44 of the Oklahoma Statutes, to elect to transfer benefits
14 to one or more of his or her dependents. The Adjutant General may
15 promulgate any rules necessary to carry out the provisions of this
16 act.

17 B. The following requirements shall be met in order to qualify
18 for the transfer of benefits:

19 1. Complete at least six (6) years of service by the date the
20 request is approved;

21 2. Agree to add four (4) or more years of service; or

22 3. Have twenty (20) or more years of service.

23 C. The spouse of a qualifying member may use the benefits if
24 the qualifying member is on active duty or separated from service.

1 D. A dependent child of the qualifying member may start to use
2 the benefits once transferred if:

3 1. The child has received a high school diploma or equivalent
4 or the child is at least eighteen (18) years of age; and

5 2. The child is less than twenty-six (26) years of age.

6 SECTION 12. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 3231.1 of Title 70, unless there
8 is created a duplication in numbering, reads as follows:

9 A. Subject to the provisions of this section, the Adjutant
10 General may permit a qualifying member described in Section 271 of
11 Title 44 of the Oklahoma Statutes who is entitled to education
12 assistance to elect to transfer to one or more of the dependents
13 specified in this section a portion of such individual's entitlement
14 to such assistance, subject to the limitations set forth in
15 subsection D of this section.

16 B. The following requirements shall be met in order to qualify:

17 1. The recipient completes at least six (6) years of service by
18 the date the request is approved, subject to paragraph 4 of this
19 subsection;

20 2. The recipient agrees to add four (4) or more years of
21 service, subject to paragraph 4 of this subsection;

22 3. The transferring recipient is enrolled in the Defense
23 Enrollment Eligibility Reporting System; and
24

1 4. The service requirements in paragraphs 1 and 2 of this
2 subsection shall not apply if the qualifying member is a Purple
3 Heart recipient but such recipient shall request to transfer
4 benefits while still on active duty.

5 C. The spouse of a qualifying member may use the benefits
6 whether the member is on active duty or separated from service under
7 the following provisions:

8 1. If the member separated from active duty before January 1,
9 2013, the spouse may use the benefits for up to fifteen (15) years
10 after the member's separation from active duty; and

11 2. If the member separated from active duty on or after January
12 1, 2013, the spouse may use the benefits at any time with no time
13 limitations.

14 D. A dependent child of the qualifying member may start to use
15 the benefits after the member has completed at least ten (10) years
16 of service and such benefits may be used while on active duty or
17 after separation from service under the following provisions:

18 1. The child has received a high school diploma or equivalent
19 or the child is at least eighteen (18) years of age; and

20 2. The child is less than twenty-six (26) years of age.

21 SECTION 13. RECODIFICATION Section 1, Chapter 390,
22 O.S.L. 2025 (70 O.S. Supp. 2025, Section 14-140), as amended by
23 Section 10 of this act, shall be recodified as Section 14-140A of
24

1 Title 70 of the Oklahoma Statutes, unless there is created a
2 duplication in numbering.

3 SECTION 14. This act shall become effective November 1, 2026.

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